

The HRTO issued 1,553 Case Assessment Directions in 2014-15. Case Assessment Directions deal with procedural issues.

Service Standards

The goal is to meet the service standard 80% of the time.

Hearings and Mediations	% of time service standard is met	Average number of days
The first mediation date offered to parties will be scheduled to take place within 150 calendar days from the date the parties agree to mediation	83%	129
The first hearing date offered to parties will be scheduled to take place within 180 calendar days from the date the application is ready to proceed to hearing	62%	170

Decisions	% of time service standard is met	Average number of days
Decisions for hearings which take 3 days or less will be issued within 90 calendar days	82%	68
Decisions for hearings which take longer than 3 days, will be issued within 180 calendar days	39%	230

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Landlord and Tenant Board



What We Do

The Landlord and Tenant Board (LTB) was established on January 31, 2007 to:

- resolve disputes between landlords and tenants
- resolve eviction applications from non-profit housing co-operatives
- provide information to landlords and tenants about their rights and responsibilities under the *RTA*
- provide information about LTB's practices and procedures

Legislative Authority

The Landlord and Tenant Board is established under the [*Residential Tenancies Act \(RTA\)*](#).

Operational Highlights

Non-profit Housing Co-op Eviction Applications

On June 1, 2014, non-profit housing co-operatives ("co-ops") began filing applications for eviction with the LTB instead of the courts.

The change was made as a result of the [*Non-profit Housing Co-operatives Statute Law Amendment Act*](#) which amends parts of the *RTA*.

Because the LTB anticipated receiving only about 500 co-op eviction applications annually, it decided to pilot new processes which could potentially be used for other kinds of applications.

Some of these new processes are:

- Using email to receive applications
- Using electronic case files instead of paper files
- Requiring respondents to file a response before the first hearing
- Using case management hearings before a merits hearing
- Scheduling hearings in individual time slots instead of as part of a hearing block.

From June 1, 2014 to April 30, 2015 the LTB received 208 co-op eviction applications, most for non-payment of regular monthly housing charges.

When co-op applications are filed, the LTB schedules both a case management hearing and a merits hearing. About 75% of the co-op applications that are contested have been resolved by mediation at the case management hearing, freeing up the time to hear other applications. Most people who have participated in case management hearings, say they liked having the opportunity to settle the dispute before a hearing. The LTB will continue to monitor the effectiveness of the co-op processes.

Fee Waivers

Another amendment in the *Non-profit Housing Co-operatives Statute Law Amendment Act* allows the LTB to waive fees for people who have a low income. The LTB developed criteria for determining who would qualify for a fee waiver and a process for submitting a fee waiver request.

The proposed rule and practice direction related to fee waivers were posted for public consultation in February 2014 and fee waivers were implemented on June 1. From June 1, 2014 to March 31, 2015, the LTB received 1,659 requests resulting in \$75,144 in waived fees.

Case Management Hearings Pilot

On September 15, 2014 the LTB began piloting case management hearings for Applications about Tenant Rights (T2) and Tenant Applications about Maintenance (T6).

During a case management hearing, parties can settle the issues in dispute with the help of a hearing officer: an LTB mediator who has been designated as a hearing officer under the RTA. If an application is not settled, the LTB schedules a second hearing to hear the merits of the application. The hearing officer makes sure the parties are prepared for the merits hearing, by directing them to exchange documents by a specific date, for example.

LTB's Toronto South and Southern (Hamilton) offices are piloting the initiative. Case management hearings are being conducted in person or by phone.

The pilot is being evaluated based on settlement rates, level of preparedness for a merits hearing and the type of adjournments requested at a merits hearing. Early results show that about 55% of the applications that were scheduled for a case management hearing were resolved at that stage. There was no difference in the success rate between case management hearings conducted by telephone or in person. Depending on the results of the pilot, the LTB will consider expanding the use of case management hearings to other LTB offices and other types of applications.

Scheduling in full day blocks instead of half day blocks - Toronto North & South District Offices

The LTB has changed how hearings are scheduled in the Toronto South and Toronto North District Offices. Previously, hearings in those two locations had been scheduled in half day hearing blocks. Starting in March 2015, most cases (Forms L1 and L9 excepted) were scheduled into full day hearing blocks. Full day hearing blocks are already common in many other LTB hearing locations.

A hearing block is a period of time during which a group of applications are scheduled. Parties are not given a specific time slot when their application will be heard during their block. They wait in the hearing room until their application is called.

The hope is that the change will reduce the number of hearings that have to be rescheduled because of lack of time. In a full day block, if tenants consult with duty counsel or if the parties choose to mediate, there will usually still be time to hold a hearing.

The LTB will be monitoring the new approach to make sure that more cases are being heard on the day they are

scheduled.

Updated Forms

The LTB launched updated application and notice forms on March 1, 2015 (for use starting April 1). The new forms are easier to understand and complete.

Upcoming Initiatives

LTB e-File: Looking to the coming year, LTB is excited to begin with a soft launch of an electronic filing system (e-File). During the soft launch a small pool of regular users will eFile their applications. LTB e-File will provide clients with a new, secure and simple way to file the following forms online: L1, L2, T2 and T6. The LTB expects to make e-File available across the province in the summer of 2015.

Email for case-specific inquiries: LTB is piloting the use of email as a way for parties to submit information or ask questions about their case in two offices: Toronto South and Southwestern (London). If the pilot is successful, the plan is to offer email across the province as another way for parties to get in touch with the LTB.

Mediations

When both parties involved in an application are interested in working together to resolve the issues in dispute, the LTB provides a mediator. In 2014-2015, approximately 35% of all applications where both parties attended the hearing were resolved through mediated agreements and/or consent orders arrived at during mediation. By comparison, about 75% of the co-op applications that were contested were resolved by mediation at the case management hearing.

A mediated agreement is an agreement between the parties. A consent order is an LTB order based on terms that the parties agree to and is enforceable by the courts.

Reviews and Appeals

A party can ask for a review of an LTB decision if a "serious error" has been made in the order.

In 2014-2015, the LTB received 2,471 requests for review, 3% of the total applications received. Of the review requests received, 1,440 were denied after a preliminary review. The other 1,022 were sent to hearing to determine whether there was a serious error.

Call Centre

The LTB handled 286,869 telephone calls this year. The average time per call was 05:10. The average time callers waited in the call queue was 06:48.

Statistics

In 2014-15, the LTB received 79,740 applications. This total includes landlord, tenant and co-op applications. This is a decrease of 2.45% or 2,008 applications compared to 2013-2014.

The ratio of landlord to tenant applications has remained relatively constant since 1998 when the resolution of landlord-tenant disputes was transferred from the provincial court system to the LTB. This past year was no exception, with 90% of applications filed by landlords and 10% filed by tenants.

Applications for termination of tenancy and eviction continue to represent the bulk of the LTB's workload. Of the total applications received by the LTB, approximately 62.7% were to terminate a tenancy because of non-payment of rent.

On June 2, 2014, non-profit housing co-operatives ("co-ops") began filing applications for eviction with the LTB.

These applications were previously handled by the courts. The LTB received 208 co-op eviction applications between June 1, 2014 and the end of the fiscal year.

As of March 31, 2015, the number of unresolved applications at the LTB was 10,286.

Table 1: All Applications Received, Resolved and Outstanding

	2014-2015*	2013-2014	2012-2013
Applications Received	79,740	81,748	82,192
Applications Resolved	77,306	82,126	80,261
Outstanding at end of fiscal year	10,286	8,497	9,580

* The 2014-2015 totals include non-profit co-operative housing eviction applications, which the LTB began receiving in June 2014.

Table 2: Landlord and Tenant Applications Received by Region (April 1, 2014 - March 31, 2015)

Central	East	North	South	South-west	Toronto East	Toronto North	Toronto South	Total
8,963	8,370	3,829	10,947	13,500	10,798	12,169	10,956	79,592

Table 3: Co-op Applications Received by Region (June 1, 2014 - March 31, 2015)

Central	East	North	South	South-west	Toronto East	Toronto North	Toronto South	Total
10	19	11	19	36	58	24	31	208

Table 4: Landlord Applications Received by Type

Case Type	Application Description	2014-2015	2013-2014	2012-2013
A1	Determine Whether the Act Applies	55 (0.1%)	69 (0.1%)	62 (0.1%)
A2	Sublet or Assignment	263 (0.4%)	241 (0.3%)	237 (0.3%)
A3	Combined Application (usually includes an L1)	3,986 (5.6%)	4,209 (5.7%)	3,936 (5.2%)
A4	Vary Rent Reduction Amount	135 (0.2%)	134 (0.2%)	209 (0.3%)
L1	Terminate & Evict for Non-Payment of Rent	49,991 (70.0%)	52,832 (71.2%)	54,777 (73.0%)

L2	Terminate for Other Reasons & Evict	7,983 (11.2%)	7,132 (9.9%)	7,102 (9.5%)
L3	Termination - Tenant Gave Notice or Agreed	1,208 (1.7%)	1,179 (1.6%)	1,225 (1.6%)
L4	Terminate the Tenancy - Failed Settlement	5,632 (7.9%)	5,955 (8.0%)	5,549 (7.4%)
L5	Rent Increase Above the Guideline	548 (0.8%)	438 (0.6%)	296 (0.4%)
L6	Review of Provincial Work Order	8 (0.0%)	3 (0.0%)	11 (0.00%)
L7	Transfer Tenant to Care Home	0 (0.0%)	4 (0.0%)	0 (0.00%)
L8	Tenant Changed Locks	31 (0.0%)	21 (0.0%)	45 (0.00%)
L9	Application to Collect Rent	1,735 (2.4%)	1,800 (2.4%)	1,620 (2.2%)
	Total	71,575	74,197	75,069

Table 5: Tenant Applications Received by Type

Case Type	Application Description	2014-2015	2013-2014	2012-2013
A1	Determine Whether the Act Applies	59 (0.7%)	23 (0.3%)	30 (0.4%)
A2	Sublet or Assignment	55 (0.7%)	46 (0.6%)	45 (0.6%)
A3	Combined Application	1,921 (24.1%)	1,680 (22.3%)	1,342 (18.8%)
A4	Vary Rent Reduction Amount	0 (0.0%)	1 (0.0%)	1 (0.01%)
T1	Rent Rebate (e.g. illegal rent)	716 (9.0%)	663 (8.8%)	618 (8.7%)
T2	Tenant Rights	3,441 (43.2%)	3,441 (43.2%)	3,676 (51.6%)
T3	Rent Reduction	69 (0.9%)	51 (0.7%)	58 (0.8%)
T4	Failed Rent Increase Above Guideline	1 (0.0%)	4 (0.0%)	1 (0.01%)
T5	Bad Faith Notice of Termination	170 (2.1%)	156 (2.1%)	152 (2.1%)
T6	Maintenance	1,516 (19.1%)	1,318 (17.5%)	1,198 (16.8%)
T7	Suite Meters	9 (0.0%)	9 (0.0%)	2 (0.03%)
	Total	7,957	7,551	7,123

Table 6: Co-op Applications Received by Type (June 1, 2014 - March 31, 2015)

Case	Application Description	Received
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Type		
C1	Application to End the Occupancy and Evict the Member based on Non-payment of Regular Monthly Housing Charges and to Collect the Housing Charges that the Co-op Member Owes	132 (63.4%)
C1/2	Combined C1 and C2 applications	32 (15.3%)
C2	Application to End the Occupancy of the Member Unit and Evict the Member	23 (11%)
C3	Application to End the Occupancy and Evict the Member - Based on the Member's Consent or Notice	7 (3.4%)
C4	Application to End the Occupancy of the Member Unit and Evict the Member Because the Member Failed to Meet Conditions of a Settlement/Order	14 (7%)
	Total	208

Table 7: Landlord/Tenant Applications by Method of Resolution (April 1, 2014 - March 31, 2015)

Resolution Type	Total
Abandoned ¹	2,668
Resolved by Mediation ²	11,926
Resolved at Hearing ³	48,107
Resolved without Hearing ⁴	4,402
Review Denied	675
Withdrawn	7,369
Other ⁵	2,001
Total	77,148

¹ ordered by hearing abandoned

² mediated; ordered by hearing mediated

³ ordered by hearing contested or uncontested; ordered by review

⁴ ordered ex parte; ordered by section 206 agreement

⁵ discontinued; order voided; ordered amended; amendment denied

Table 8: Co-op Eviction Applications by Method of Resolution (June 1, 2014 - March 31, 2015)

Resolution Type	Total
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No Hearing ⁶	22
CMH Only	110
Merit Hearing Only	10
Both CMH and Merit Hearing	16
Total	158

⁶ application withdrawn/discontinued; parties settled the issues on their own

When a co-op eviction application is filed, the LTB schedules a case management hearing (CMH) and a merits hearing. If the application is resolved at the CMH, the merits hearing is cancelled.

Service Standards

The goal is to meet the service standard 80% of the time.

Standard	% of time service standard is met	Average number of days
Applications will be scheduled for a hearing within 25 business days	78%	21
Decisions for LTB applications will be issued within 5 business days at the conclusion of the final hearing	89%	3.6

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Social Benefits Tribunal



What We Do